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ROBERT B. PIPPIN

1.

THE FUNDAMENTAL QUESTION of the "Analytic of the Beautiful" in the "Critique of Aesthetic Judgment" is easy enough to identify. On what basis, if any, could one claim some sort of universal a priori validity for judgments of the form, "This is beautiful"? In Kant's well-known analysis of this question, the issue is reformulated as: By what right could one claim that another person ought to feel pleasure in the presence of certain objects? Let us call this the "basic question."[1]

There is controversy enough about what Kant means by this basic question and how a deduction of the validity of such judgments is supposed to work. However, shortly after Kant began serious work on a "Critique of Taste" in 1787, the whole issue became even more complicated when the proposed work became a full-blown *Critique of Judgment*. The question of aesthetic judgment was presented within the new, larger topic of reflective judgment, was presumably thereby linked to the problem of teleological judgments, and so to the great general theme of the whole of the third *Critique:* the purposiveness

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[1] Kant's own formulation: "How is a judgment possible in which the subject, merely on the basis of his own feeling of pleasure in an object, independently of the object's concept, judges this pleasure as one attaching to the representation of that same object in all other subjects, and does so a priori, i.e., without being allowed to wait for external confirmation?" (*Kritik der Urteilskraft* [*KU*] in *Kants gesammelte Schriften* [Berlin: Königlich Preussische Akademie der Wissenschaften, 1908–13 (hereafter Ak)], Bd. 5, p. 288). All translations are my own, although I have frequently consulted Werner Pluhar's translation of *The Critique of Judgment* (Indianapolis: Hackett, 1987). (Page references to the unpublished Introduction are to Bd. 20 of the Akademie edition.)

of nature. It also created a great difficulty for commentators, since this link with reflective judgments now seemed arbitrarily to force together the problem of taste with such already diverse, complex reflective activities as the formation of empirical concepts, the integration of empirical laws into systems, and the search for explanations unique to organic beings.

Although this topic supervening the whole of the *KU*, reflective judgment, indicates prima facie that Kant himself thought there was a common topic in the question of the possibility of our apprehension of aesthetic wholes, organic wholes and nature itself as a whole, it would be an understatement to say that there has been very little agreement about the nature or legitimacy of this relation. Especially problematic has been the question: what role, if any, do Kant's speculations and conclusions about the great significance of aesthetic appreciation (almost all introduced by the "reflective judgment/purposiveness" theme) play in the actual argument given in support of the basic question? Are Kant's remarks about the relevance of the beautiful to our understanding of nature as a whole and our place within such a whole, and his speculations about the teleological, moral, and socio-cultural significance of the aesthetic version of reflective judgments to be understood as part of what needs to be actually established by the argument for the basic question, the intersubjective validity of judgments of taste, or are they mere addenda, suggestive but vague speculations *am Rande* which Kant allowed himself, once the basic question had been answered?[2]

Traditionally, responses to this question can be characterized as on a continuum of sorts, ranging from a more narrow to a wider view.[3] Interpretations range from those with little sympathy for connecting an answer to the basic question with these large, speculative issues to more holistic, integrative inter-

[2] It is no doubt true that one can draw a justifiably Kantian distinction between the "purely logical and epistemological analysis of the content and status of aesthetic judgments," and "theses about the individual and social psychology of the phenomenon of taste," as Paul Guyer does in "Autonomy and Integrity in Kant's Aesthetics," *The Monist* 66 (1985): 170. But it is also true that Kant himself seemed to consider some aspects of the "logic and epistemology" issue already inextricably intertwined with social, moral and "psychological" issues, as, I want to claim, is signalled by the implications of the reflective judgment classification.

[3] These different approaches reflect not only conclusions about textual evidence but much larger issues as well. The narrower approach is more consistent with that strain in *KU* which emphasizes the strict autonomy of the beautiful and of art, a strain more consistent with aesthetic modernism and a radical differentiation between questions of art and beauty on the one hand, and truth and rectitude on the other. The wider approach stresses that strain in *KU* which emphasizes the philosophical centrality of aesthetic appreciation (the general possibility of the "ideal" in the "sensible," say) for any comprehensive or systematic account of the possibility of truth and morality, nature and freedom. See the treatment of this theme in Kant and later European philosophers by J. M. Bernstein, *The Fate of Art: Aesthetic Alienation from Kant to Derrida to Adorno* (Cambridge: Polity Press, 1992), 1–65.

pretations. The issue at stake in this continuum concerns what a claim for "subjective universal validity" means—whether it is a "rational expectation" that others, suitably situated, would feel a distinctive kind of "disinterested" pleasure, that we are entitled to expect that they would; or whether it involves an appeal to some kind of norm, a demand for some sort of discursive commitment, and thereby a claim that a failure to appreciate the beautiful would be a normative failing. The former is usually based on some claim about epistemic capacities, and what sort of factual relation between harmony and pleasure we have (a priori) a right to expect, given the necessary conditions of experience; the latter on some practical imperative, and so a right to demand conformity to a binding norm, and it thereby invokes some version of Kant's "priority of the practical" thesis.[4] In the following, I want to defend a version of the latter option, and to do so in a way that will illuminate what Kant must have thought was at stake in the practical normativity in all reflective judgment—or the nature of our (unavoidable, practically justifiable) claim on others to appreciate and estimate nature purposively. The idea will be: the beautiful's claim on us must ultimately rest on a distinct, quite unusual social norm: our requiring each other to appreciate the purposiveness of nature. In investigating the nature of the subjective universal validity of judgments of taste, Kant came to appreciate, I think, the fundamentality and unavoidability of the norm of purposiveness in any realization of our distinctive "vocation" (*Bestimmung*) and that the nature of this sort of normativity could not be accounted for by his usual notions of conceptual and practical normativity.[5]

I begin with a brief summary of the textual basis for both ends of this continuum.

As noted, officially the *Critique of Judgment* is a critique of reflective judg-

[4] For the most influential example of the former, see Paul Guyer's account, *Kant and the Claims of Taste* (Cambridge: Harvard University Press, 1979), and R. K. Elliot, "The Unity of Kant's 'Critique of Aesthetic Judgment'," *British Journal of Aesthetics* 8 (July 1968): 245. What I am calling the "significance" issues are addressed in such approaches, but are treated as logically separate questions, distinct from the basic question understood in this form. Donald Crawford tries to link matters a bit more with an account of the Deduction's various "stages." See *Kant's Aesthetic Theory* (Madison: University of Wisconsin Press, 1974). For an overview of the issues, and the beginnings of a defense of a stronger reading of what we may "demand" of others, see Kenneth Rogerson, "The Meaning of Universal Validity in Kant's Aesthetics," *The Journal of Aesthetics and Art Criticism* 40 (1981): 301–308, and his book, *Kant's Aesthetics: The Roles of Form and Expression* (Lanham, Md.: University Press of America, 1986).

[5] Put another way: the beautiful functions as a norm for Kant. This means that not appreciating the beautiful where it would be appropriate is getting something wrong; not undertaking a commitment one is obliged to make. To be able to claim this requires reasons, as do all normative claims, and therein lies the problem, since such reasons in this case cannot consist in empirical evidence, necessary conditions of phenomenal experience, or strict implications of our moral duty. Whence, then, the "backing" for such a norm?

ment, and judgments of taste are supposed to be a species, presumably along with teleological judgments, of such reflective judgements. "Judgment in general," Kant writes, "is the ability to think the particular as contained under the universal." If we already possess the universal and are deciding whether the particular is to be subsumed under it, the judgment is "determinative." "But if only the particular is given and judgment has to find the universal for it, then this power is merely *reflective*" (179).[6] The formation of such a universal is also said to require a general principle, and as the title to section 5 makes clear, that general principle is the "formal purposiveness of nature." Kant is quite clear that he thinks that the principle of reflective judgment is a "transcendental principle," a "universal a priori condition *under which alone* things can become objects of our cognition in general" (181), and so must be shown to possess some sort of "logical objective necessity" (182). Such formulations at least suggest that, if the case for the objectivity of judgments of taste will somehow assume this characterization of reflective judgments, then the scope of the argument will have to be wide indeed. In demonstrating that such judgments are intersubjectively valid, it appears that we shall also be relying on some demonstration that claims about the general purposiveness of nature have some relatively strong, even transcendental, authority.[7]

The most direct statement of the relation between aesthetic and reflective

[6] One might of course challenge the possibility of a strict distinction between determinative and reflective judgments, given especially Kant's claim in the *Critique of Pure Reason* that "all appearances *lie in one nature*, and must so lie, because without this a priori unity no unity of experience, and therefore no determination of objects in it, would be possible" (B263/A216; my emphasis). Since such a comprehensive unity is the work of reflective judgment, it would appear to have a transcendental-determinative status as well, as F. P. van de Pitte has argued in "Is Kant's Distinction between Reflective and Determinative Judgment Valid?" *Akten des 4. Internationalen Kant-Kongresses*, ed. G. Funke (Berlin: de Gruyter, 1974), 445–51. See also the remarks by Konrad Marc-Wogau in *Vier Studien zu Kants Kritik der Urteilskraft* (Leipzig: Harrasowitz, 1938), 10–11. Blurring this distinction, however, leads straight to Hegel, as he himself realized in *Glauben und Wissen*. See my discussion in *Hegel's Idealism: The Satisfactions of Self-Consciousness* (New York: Cambridge, 1989), 73–79 and in "Avoiding German Idealism: Kant and the Reflective Judgment Problem," forthcoming in Blackwell's *A Companion to Continental Philosophy*, ed. Simon Critchley.

[7] In the *Critique of Pure Reason*, Kant had also argued that the proper exercise of reason depends essentially on the notion of purposiveness. See A687/B715 and A694/B722. However, for the most part, that notion was dealt with in a purely regulative, or subjective, way. At times, though, in the "Appendix" to the Dialectic, there are indications that Kant thinks the notion can be given a stronger, quasi-constitutive, or objective status. See my *Kant's Theory of Form* (New Haven: Yale University Press, 1982), 201–15. His transferring in the third *Critique* many of the issues about a "regulative use of reason" to the problem of "reflective judgment" and his attempt at a deduction of sorts for various kinds of reflective judgments would, on the face of it, suggest a different and more ambitious argument justifying a claim about the purposiveness of nature. See the account in Rolf-Peter Horstmann's "Why Must There Be a Transcendental Deduction in Kant's *Critique of Judgment*?" in *Kant's Transcendental Deductions*, ed. E. Förster (Stanford: Stanford University Press, 1989), 157–76.

judgments occurs in the First or unpublished Introduction, where Kant claims that "aesthetic judgment" can be "none other than reflective judgment."

> . . . we must regard the feeling of pleasure (which is identical with the representation of aesthetic purposiveness) as attaching neither to the sensation in an empirical representation of the object, nor to the concept of that object, but consequently as attaching [*anhängend*] to—and as connected with, by means of an a priori principle—nothing but the reflection and its form (the essential activity of judgment), *by which judgment generally strives to proceed from empirical intuitions to concepts.* (249, my emphasis)[8]

The direction suggested by such remarks is linked to the most ambitious claim in the work. In the published Introduction, Kant states that judgment "provides nature's supersensible substrate (within as well as outside us) with determinability [*Bestimmbarkeit*] by the intellectual power."[9] He goes on to say that the moral or practical use of reason "gives this same substrate determination [*Bestimmung*]," and so, in the widest possible claim for the significance of judgments of taste, "*judgment makes possible the transition from the domain of the concept of nature to that of the concept of freedom*" (196).

However, despite the evidence about the high priority Kant assigns to these "significance" issues, it is not easy to restate clearly the role such themes play in a defensible answer to the basic question. The skepticism surrounding these larger issues is easy to summarize.

Aside from the obvious difference between a claim for the internal purposiveness of nature (one part or species fitting together with parts in an organic whole or with other species), and a claim for the purposive fit between nature as a whole and our subjective requirements in investigating it,[10] there are many other manifest dissimilarities between reflective judgments and judg-

[8] There is an equally strong claim in the published introduction at p. 193. I note that the underscored passage does not link this pleasure to any form of reflective activity (or to "simple reflection"), but to the activity described in the underscored phrase. For a good discussion of the implications of this link, see Hannah Ginsborg, "Reflective Judgment and Taste," *Nous* 24 (1990): esp. 64ff.

[9] *KU*, 196. In itself this claim, that judgment does not merely determine nature but originally provides nature with "determinability," is a striking one. This clearly suggests that this reflective power—necessary, it would appear, for all empirical concept formation (cf. V, 217, 219)—provides a kind of preconceptual orientation within nature, one which would be wrongly construed as an imposed "regulative idea." There would be nothing to regulate were we not originally warranted in "taking up" experienced nature with this expectation of purposiveness. This activity appears to be what Kant is talking about when he says that "to find beauty in an object, nothing is required but the mere reflection (without any concept) on a given representation" (XX, 229). Cf. the discussion of empirical concept formation in my *Kant's Theory of Form*, 88–123. See also the discussion in Ginsborg, "Reflective Judgment and Taste," 67.

[10] Such a disanalogy could be mediated by noting passages where Kant claims that the only basis for a claim about the internal purposiveness of nature would ultimately be a claim about the fit between nature and our "requirements," one of which is the assumption of internal purposiveness. Cf. the critical discussion by Marc-Wogau, *Vier Studien*, 39.

ments of taste. What is distinctive about judgments of taste, at least as Kant explains them in the Analytic, is that they do not involve attempts to subsume objects under concepts in any, even a reflective, sense. The absence of available concepts is, rather, central to the unique sort of pleasure ("free play") we experience aesthetically. And the heart of such aesthetic judgments involves an intersubjective, not an objective claim, a claim that others ought to feel something, not that a subsumption claim about an object is (regulatively) warranted. Secondly—again in contrast with reflective judgments—the ultimate ground appealed to in such claims seems to have much less to do with the purposiveness of nature, or even the requirements of explanation, than with the fact that human subjects possess common psychological faculties, faculties necessary for experience itself, and which, under certain highly specific conditions, we can assume come into play in identical ways.[11]

The analytical resources available within such a more skeptical, narrower approach to the basic question are fairly straightforward.[12] If one treats the general issues of reflective judgment as a theory that "not only adds a layer of often internally obscure doctrine to Kant's theory of taste," but also in some ways "actually masks the real character of that theory,"[13] then one must restrict oneself to the psychological skeleton of Kant's theory, his account of aesthetic pleasure alone, and the role of human faculties in accounting for that pleasure and in warranting its imputation to others. In, for example, Guyer's account, "reflection" does play a role both in identifying the pleasure and its occasioning conditions, and then in ascertaining the suitability of this imputation to others, but not in any way that needs to rely on reflective judgment, or the associated themes of the internal purposiveness of nature, systematicity, supersensible substrates, or the unity of nature and freedom.

The gains in philosophical clarity and economy achieved by this narrow focus, however, also have a down side, as we come closer to a dilemma at the heart of the third *Critique*. Our focus can become so narrowly concentrated on

[11] Besides these disanalogies between reflective judgments and judgments of taste, one might also hesitate to link the basic question with more speculative issues because of a direct skepticism about such claims. We might simply deny that the significance attributed to the regulative use of reason, or reflective judgment, is warranted, that Kant nowhere establishes the indispensability of the ideal of complete systematicity, or successfully explains what he means by the necessity of assuming a thoroughgoing purposiveness in nature. If, indeed, he could establish the necessity of such subjective requirements, it would then be hard to account for our pleasure in experiencing objects contingently suited to our ends: we would, as in other Kantian cases, just be "getting out" of nature what we "put in." See Paul Guyer, *Kant and the Claims of Taste*, 83.

[12] Again most evident in Guyer's work. See also the doubts expressed by Jens Kulenkampff, in *Kants Logik des ästhetischen Urteils* (Frankfurt a.M.: Klostermann, 1978), especially about the connections (or lack of them) between the considerations introduced in the "Introductions" and the details of the text (28).

[13] Guyer, *Kant and the Claims of Taste*, 33.

the aesthetic response, so wary of any speculation about the occasion of that response, and the significance of the experience itself, that aesthetic judgment becomes mostly a matter of investigating one's own mental history, as if exclusively a species of psychological self-examination.[14] Even though this approach still involves a normative, not merely factual issue (our right to expect, on nonempirical grounds, that others experience pleasure in the beautiful), this concentration makes it difficult to understand what could have been at stake for Kant in aesthetic appreciation. Human beings just seem to have a peculiar psychological quirk: they turn out to be capable of a kind of disinterested, pleasurable experience, without having determinately classified or conceptualized that experience.[15] Hence the dilemma, which we can formulate with a familiar Kantian formula: a narrow focus on the psychological dimensions of the aesthetic response, without substantial attention to issues of wider significance and ambition, is potentially blind; and an appeal to such wider issues as central to the argument of the *Critique*, without some logical connection to the narrow problem of the basic question itself and the details of the Deduction, threatens to be empty.

2.

Resolving this dilemma obviously would require a comprehensive interpretation of the *Critique of Judgment*. In lieu of such an account, I want to suggest a way of considering the issue that might avoid the dilemma noted above. We can concentrate the problem this way.

On the one hand, Kant's general epistemological position commits him to the view that any possible representation of content, or possible experience, involves the application of a concept to a manifold, or must involve a determinative judgment. This, though, would be an inadequate model for what goes on in appreciating the beautiful or in "estimating" life. (We shall concentrate on the former here.) Aesthetic appreciation is intelligible and part of a unified experience, but, Kant argues, would be mischaracterized if discriminated on such a concept-application model, as if we just identified a peculiar sort of "feeling," a psychological process, or, say, an instance of "the agreeable," or as if the beautiful object instantiated some standard of formal perfec-

[14] Guyer, *Kant and the Claims of Taste*, 205–206. Cf. Karl Ameriks's remarks on this issue in his review of Guyer's book, *New Scholasticism* 54 (1980): 241–49, and what amounts to a "response to my critics" discussion by Guyer in the "Introduction" to his *Kant and the Experience of Freedom* (Cambridge: Cambridge University Press, 1993), 1–24.

[15] This apart from other problems with Guyer's treatment, especially the lack of a convincing textual basis for the imputation of this twofold theory of reflection to Kant. See the criticisms in Section 1 of Hannah Ginsborg's "On the Key to Kant's Critique of Taste," *Pacific Philosophical Quarterly* 72 (1991): 290–313, and in Henry Allison's "Pleasure and Harmony in Kant's Theory of Taste: A Critique of the Causal Reading," forthcoming.

tion. In rendering aesthetic appreciation intelligible, we are, he keeps suggesting, "reflecting"—attending somehow, in some unusually "free," harmonious way—to the possible concept which would unify such a manifold, rather than applying one we already have. We do not find one in aesthetic reflection, but, for reasons Kant needs to defend, we experience a kind of pleasure in such reflection which, in spite of the indeterminacy of these results, nevertheless warrants a claim that all others ought to take such pleasure in the beautiful. Such reflecting, however indeterminate, is the basis of some sort of justifiable commitment, has some sort of a normative basis, and trying to establish the beautiful as such a norm seems to be what the *KU* as a whole is about.

The importance of the normative dimension to this capacity to reflect in appreciating the beautiful is further stressed by Kant's many remarks on "taste," which he treats as central to the possibility of the aesthetic response, but does not merely equate with the fact of such responsiveness itself. It is a capacity to appreciate reflectively on which such a response depends.

That is, he claims that, ". . . we have a merely aesthetic power of judgment, *an ability to judge forms* without using concepts and to feel in the mere judging of these forms a liking that we also make a rule for everyone, though our judgment is not based on an interest and also gives rise to none" (300). In section 8 Kant calls our aesthetic sensibility the "taste of reflection" to distinguish it from a mere taste of sense, and to further emphasize the role of our intellectual activity in the possibility of such pleasure (beyond, that is, some sort of passive "activation" of the understanding and the imagination). He notes that this capacity, taste, can be cultivated; indeed, in section 32, he says: ". . . taste is precisely what stands most in need of examples regarding what has enjoyed the longest-lasting approval in the course of cultural progress in order that it will not become uncouth again . . . and taste needs this because its judgments cannot be determined by concepts and precepts" (283).

This "taste" is defined in section 40 "as the ability to judge something that makes our feeling in a given presentation universally communicable without mediation by a concept"; it is "our ability to judge a priori the communicability of the feelings that (without mediation by a concept) are connected with a given presentation" (295–96). In the "General Comment" after section 22, we get a hint of what kind of norm the beautiful is. Kant defines taste as "an ability to judge an object in reference to the free lawfulness of the imagination," and calls the activity of the imagination "productive and self-active [*selbsttätig*]," or that it is "free and lawful of itself [*frei und doch von selbst gesetztmäßig*]" (240–41).

On the other hand, there is certainly evidence that Kant thought that the free-play harmony so crucial to aesthetic appreciation simply produces or causes pleasure, that pleasure is a qualitatively identical, nonintentional state,

and that subjective universal validity involves an expectation about another's feeling, and not, as the above claims seem to be suggesting, a claim about a uniquely warranted evaluation of nature. In section 7 of the published Introduction (or at p. 224 of the First), Kant seems to claim that judgments of taste are just based on a sensation, which is itself just "brought about" (*bewirkt*) by the harmony of faculties.

So, while the former passages suggest that it is reflective judgment (the activity "by which judgment generally strives to proceed from empirical intuitions to concepts"), as an aspect of aesthetic appreciation itself, that somehow is supposed to make possible a connection between a subjective experience of pleasure and a universal demand that others feel the same way, the latter passages and what appears to be the Deduction itself in section 38 suggest a more psychologically reflective account—that it is only a reflective determination of the uniquely disinterested character of the pleasure, occasioned by the free play of the faculties in harmony, which can at least lead, "upon reflection," to the "rational expectation" that others would, or at least could, feel the same (that the pleasure is not an aspect of any interested, private pleasure).

It is of course the former sort of claim which preserves the link with the larger significance, purposiveness and systematicity claims of *KU*. If it is to be defended, Kant must explain (a) the relation between such reflective activity and pleasure, (b) how he understands the role of universal communicability or a *sensus communis* in the possibility of such reflective activity, and (c) how such an emphasis would affect an overall view of the Deduction strategy. I take up each of these below in turn.

3.

Kant himself is well aware of the centrality of the first topic, and calls the first section which introduces it to us, section 9, "the key to the critique of taste" (217). That section is called an "Investigation of the Question Whether in a Judgment of Taste the Feeling of Pleasure Precedes the Judging of the Object or the Judging Precedes the Pleasure." The general point of the section is easy enough to state, but the details have proven quite difficult to sort out. With respect to the question posed in the title, Kant wants to deny that "the feeling of pleasure precedes the judging of the object," and to affirm that "the judging precedes the pleasure." His reason for this is stated immediately in the first full paragraph.

> If the pleasure in the given object came first, and our judgment of taste were to attribute only the pleasure's universal communicability to the presentation of the object, then this procedure would be self-contradictory. For that kind of pleasure would be none other than mere agreeableness in the sensation, so that by its very nature it

could only have private validity, because it would depend immediately on the representation by which the object is given. (217)

Kant is here arguing that if we understand a pleasure to be simply and immediately produced or caused by an object, a mere direct sensation of the agreeable, there could be no basis for any expectation, much less demand, that others experience such a sensation. I have no way of knowing whether the particular, contingent conditions under which this pleasure happened to be caused in me obtain for others, indeed for all others.[16] (He might also have gone on to argue, consistent with his general theory, that I could not justifiably expect from another a distinctly aesthetic pleasure, one that is always a pleasure in the object, because there is a difference between a pleasure produced by an object, and taking pleasure in an object.[17] In Kant's general theory of intentionality, some spontaneous intellectual activity is necessary to establish that latter relation, and that activity is precluded on the model of some "immediate feeling" preceding any judgmental activity. This is a point that will recur importantly below.)[18]

The problem, indeed a "key" (*Schlüssel*) in the *Critique*, and key to all the issues we have introduced, is what it means to assert that judgment "of the object" *precedes the pleasure*. Framed this way, the issue begins to bring to a very fine point key issues not only in Kant's speculation on aesthetic matters, but at the center of the critical philosophy itself.[19] Kant's general attack on rationalism (in aesthetic matters: the rule-fetish of the French, perfectionist accounts, etc.), his insistence on the sensual, immediate element of experience, and so on the finitude and dependence of human subjects, even while he denies the passivity and heteronomy threatened by such an emphasis, bring us yet again to what his "neither the one nor the other" critical position is supposed to involve.

Part of what Kant says in section 9 is unproblematic. He notes that what we are looking for is a kind of "universal reference point with which everyone's

[16] Cf. his remark in section 37: "That I am perceiving and judging an object with pleasure is an empirical judgment. But that I find the object beautiful, i.e., that I am entitled to require that liking from everyone as necessary, is an a priori judgment" (*KU*, 289).

[17] This is pointed out and explored by Richard Aquila in "A New Look at Kant's Aesthetic Judgments," in *Essays in Kant's Aesthetics*, ed. Ted Cohen and Paul Guyer (Chicago: University of Chicago Press, 1982), 87–114.

[18] Indeed he might also have argued that there is always some sense in which universal agreement can be demanded from everyone even about my sensations. If I am making a correct psychological judgment about my mental life, then, as in the case of every true empirical judgment, I can expect intersubjective agreement. But I can only expect agreement that what I have said about me is true, not that all others should have the same experience; and even *that* expectation precludes the priority of the sensation to all (even determinative) judgment.

[19] Cf. the discussion in my "Avoiding German Idealism."

representational power is compelled to harmonize," and that reference point will be the powers or faculties necessary for any cognition. Using this reference point, our claim on others will have as its "basis . . . nothing other than the mental state that we find in the relation between the representational powers in so far as they refer a given representation to cognition in general" (217). As he begins to explain what he means by this, he notes first that a sequence of sensations can be apprehended exhibiting (simply as apprehended) an order and formal coherence in no way a function of my mundane application of the relevant empirical concept ("landscape," "sonata," etc.).[20] The play of the images or representations associated by imagination turns out to have a formal regularity, as if this play were governed by some principle of unity, without one (a concept) having been applied.

Kant is certainly very eager to stress this point: that our awareness of such harmony is not the usual result of the successful application of a concept. For all his worries at the beginning of section 9 that basing the experience of the beautiful on a feeling of pleasure "prior" to the "judgment of the object" would sensualize and privatize the experience, the direction of a more cognitive or conceptual approach might in turn destroy the aesthetic or sensible nature of the experience of the beautiful. He asks "how we become conscious, in a judgment of taste, of a reciprocal subjective harmony between the cognitive powers: is it aesthetically, through mere inner sense and sensation? or is it intellectually, through consciousness of the mere intellectual activity by which we bring these powers into play?" And he answers unequivocally for the former, that we sense such a harmony through a "quickening" (*Belebung*) of our cognitive powers, not through the activity of our discursive, claim-making capacities.

But so far he is just stressing that such an awareness of unity is not conceptual in the determinative sense, that we can feel or sense a regularity in a manifold which involves an activity—presumably an associating and reproducing—which is both indeterminate (*unbestimmt*) and "in accord with others" (*einhellig*). As I read this passage, by stressing that such a harmony is sensed inwardly rather than conceptually apperceived, he does not yet deal with the question of why or in what sense such harmony would be pleasant, or in what sense that pleasure could be imputed to others. As a first pass over the issues, he has so far only said that the sensation in question is a harmonious "quickening."

[20] Even apart from considerations relevant only to the "critical period," Kant's remarks in the *Reflexionen* throughout the late 1760s and 1770s always evince the same sentiment. The "Geschmacksurteil" is described as "nicht eine blosse Empfindung, sonder das, was aus verglichenen Empfindungen entspringt" (R 624, 1769). I do of course use such concepts to identify the beautiful object, but not in any way which makes the beauty a quality of the species-kind. So not "This is a beautiful rose," but "This rose is beautiful," as in Anthony Savile's discussion in *Kantian Aesthetics Pursued* (Edinburgh: Edinburgh University Press, 1993).

Just as with the passages about the "capacity to judge" that is taste, what Kant also does in the body of section 9, in a way signalled by its title, is to go on to stress that I must in some way actively attend to—must do something or engage—the aesthetic properties in some way, or must "reflect" on such a spontaneous "harmony" in order to experience the delight in the object that follows upon such a happy suitability of objects for our general practical and cognitive expectations. The aesthetic pleasure in question can be linked to the "harmony of the cognitive powers" only if that harmony is attended to, or taken up in a self-conscious if indeterminate way; and that means that any possible pleasure in the harmony must be preceded by (or logically depends on) a "purely subjective (aesthetic) judging of the object or the representation through which it is given," or most simply by *some* reflective realization of what in general is happening to us in such a harmony. (Kant especially stresses this issue in section 8, by contrasting a mere *Sinnen-Geschmack,* or "taste of sense," with a *Reflexions-Geschmack,* or "taste of reflection"; *KU,* 214.[21])

If it is being able to appreciate reflectively the significance of this sensed harmony which explains the possibility of our taking pleasure in the purposiveness of nature, its suitability "for us," then Kant's apparent distinctions between (i) a sensed harmony, (ii) a pleasure in such harmony, requiring (iii) some sort of indeterminate appreciation, which appreciating itself is guided by (iv) a common sense or a universal voice, might all be explicable as aspects of one phenomenon and might help explain his many remarks. He says directly, for example, that "this merely subjective judging of the object, or of the representation by which it is given, precedes the pleasure in the object and is the basis of this *pleasure in the harmony* [*Lust an der Harmonie*] *of the cognitive powers*" (218). And in section 12, he says that our aesthetic pleasure simply is "the very consciousness of a merely formal purposiveness in the play of the subject's cognitive powers" (222). (I note that he goes on to call this consciousness an aesthetic judgment, reinforcing the role of reflective activity, rather than something like a direct, felt pleasure in purposiveness itself. Such a judgment "contains a basis for determining the subject's activity regarding the quickening of his cognitive powers"; 222.)

Of course, this realization is not a "determinative judgment." We do not

[21] For another of the many places where Kant links the experience of pleasure to the judgment itself, see 191: "someone who feels pleasure in the mere reflection on the form of an object, without any concern about a concept, rightly lays claim to everyone's assent, even though *this judgment* is empirical and a singular judgment" (my emphasis, which draws attention to the fact that Kant understands the original reflection to be itself a judgment, and not a stage or basis for a judgment). In the article cited in note 17, see Aquila's remarks on how the experience of pleasure, and one's attribution of a kind of pleasure to oneself, functions analogously to predication and the demand for assent.

apply some psychological or intellectual concept in this "judgment of the object." But, Kant is arguing, only a certain sort of "indeterminate" reflection on the experience, a "search" or "striving" for an appropriate universal, reveals the significance of the harmony in a way that can occasion pleasure. Without such a "sense" of things,[22] without judgment, that vista, or bird's song, or sonata, however harmoniously presented, and even immediately experienced, might simply "pass through" our consciousness as harmonious images or agreeable noise, occasioning no distinctly aesthetic pleasure; we would have no "taste."[23] (If it were not possible for the "free play" or harmony to occur, attended to by a "simple reflection," without a distinct feeling of pleasure, there would be no reason for Kant to insist so deliberately that such a distinctly aesthetic pleasure requires that we be in pursuit of an end, requires an a priori representation as condition of that pursuit, and, later, that the "cultivation" of taste, an increased sensitivity by exposure to examples, is possible, that appreciation and a certain sort of self-consciousness are linked.)

All of this appears to be what Kant means in claiming, as quoted earlier, that the "feeling of pleasure" itself "attaches" to reflection, especially the reflective activity "by which judgment generally strives to proceed from empirical intuitions to concepts" (239).[24] Kant's analysis ties pleasure to a realization or apprehension, however indeterminate, of the general or nonprivate significance of the harmonious state.[25] It is in realizing something like the general

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[22] Kant's language in section 40, connecting judgment with a (nonsensible) sense, or common sense, is important to stress. It helps highlight the connection between *Urteilskraft* and the traditional understanding of judgment as a kind of practical wisdom, *phronesis, der richtige Takt*, etc. What is so striking about Kant's view, in contrast to all classical theories, is that (under the influence of Rousseau, yet again) such a sense of things, or here "taste," is not a peculiar talent of the few. Upon analysis of the relevant conditions, any single experience of beauty in his account justifies the demand that all others "exercise the same judgment," or realize (and cultivate) this capacity for the appreciation of beauty that they possess simply *qua* human beings.

[23] Cf. the useful formulation by Kulenkampff, that "das reine Geschmacksurteil gewinnt durch diese Überlegung die Struktur, sich nicht etwa *auf* Gefühl zu gründen oder zu beziehen, sondern durch die Urteilsintention, die auf den Gegenstand wie auf das freie Spiel Bezug nimmt, in einem bestimmten Gefühl: der Lust an der Harmonie der Erkenntiniskräfte zu terminieren" (*Kants Logik*, 88).

[24] Thus the situation in this case is similar to the moral context, in which our consciousness of the moral law is itself identical to the experience of the distinct moral feeling of respect: it does not cause or follow from that feeling.

[25] On the importance of the distinct sort of "apprehension" involved in aesthetic pleasure, see Rudolf A. Makkreel, *Imagination and Interpretation in Kant* (Chicago: University of Chicago Press, 1990), 47–51.

This result concurs with part of the conclusion argued for by Ginsborg in "Reflective Judgment and Taste." Her analysis there though is, I think, incomplete. If taking aesthetic pleasure in the object *is* "to take one's mental state in perceiving the object to be one which all other perceivers of the object should share" (72), we still need some account of the *content* of "one's mental state in perceiving the object" beyond its being, whatever it is, one that is shareable. (I am thus disagreeing

teleological significance of the harmonious play of the imagination that a kind of pleasure, a delight in nature, is possible.[26] Again, those incapable of such a realization have no taste. Or, said another way, there is little reason to think that mere reflection on the harmony of the understanding and imagination *would* occasion any pleasure, apart from this self-consciousness, this "sense" of the general significance of the activity.[27] While there is a natural tendency to

with her claim that the act of reflection is somehow both the act of claiming universal validity and itself "responsible" for the aesthetic pleasure; 70 and 71.) We can take pleasure in its shareability, I am suggesting, only because of this reflective apprehension of harmony as purposive, a warranted "attunement" to such purposiveness without which any coherent human experience would not be possible. Put simply: we are evaluating the world in aesthetic apprehension, and it is because this evaluation is (uniquely and distinctly, indeed subjectively) warranted that is shareable. This reflective realization is what is delightful and common. Kant is pretty clear, I think, that when I make an aesthetic judgment, I am not making a self-referential judgment about the shareability of my mental state and demanding that others make a self-referential judgment about their mental state. As noted above, "taste" is defined in section 40 "as the ability to judge *something that makes* our feeling in a given presentation universally communicable without mediation by a concept"; and "we have a merely aesthetic power of judgment, an *ability to judge forms* without using concepts and to feel in the mere judging of these forms a liking that we also make a rule for everyone, though our judgment is not based on an interest and also gives rise to none" (300).

Ginsborg, in "On the Key to Kant's Critique of Taste," states her interpretation more fully and admits that it seems to make aesthetic judgments devoid of content, and so opens up the possibility that "from an objective standpoint, there is indeed nothing to prevent me from judging each and every object to be beautiful" (310). She claims that this might be an objection against Kant, but that it is his position and cites passages where Kant makes claims about the formality of aesthetic judgments. But those passages point to Kant's well-known concerns with the formal features of the aesthetic objects and do not establish that he thinks "anything" could be beautiful. I take it as a further disadvantage of Ginsborg's approach that, while reflection of a sort has been introduced into Kant's account of aesthetic apprehension, it is such a peculiarly self-referential claim that no connection can be seen between it and his manifest concerns with reflective judgment and purposiveness in general.

[26] This theme appears so frequently in the text that it seems arbitrary to insist that it simply represents the reappearance of an "older" theory, inconsistently appealed to alongside Kant's newer, more modest, more psychological account. It is such a persistent element of his earlier accounts of taste, and the language of those earlier formulations appears in such similar formulations, that such a hypothesis is prima facie implausible. Compare, *inter alia:* "Wenn ich es [an object] schön nenne, so erkläre ich nicht allein mein Wohlgefallen, sondern daß es auch anderen gefallen soll" (R 640, 1769). See also the remarks on "Geselligkeit" in R 818, 1776–78, the strict connection between taste and "Gleichformigkeit" and "Harmonie" with others in R 726, 1771, and especially in R 856, 1776–78.

[27] Kant does frequently say such things as: "The very consciousness of a merely formal purposiveness in the play of the subject's cognitive powers, accompanying a presentation by which an object is given, is that pleasure" (*KU*, 222). In such passages, though, he often goes on, as in this one, to describe such "consciousness" in a relatively complex way, as when he says: "For this *consciousness in an aesthetic judgment* contains a basis for determining the subject's activity regarding the quickening of his cognitive powers, and hence an inner causality (which is purposive) concerning cognition in general, which however is not restricted to a determinate cognition" (ibid.; my emphasis). One other advantage in such an approach is that it makes it possible to begin to discuss something Kant should be able to discuss: "degrees" of taste, a greater or smaller reflective capacity to notice such significant harmony in greater or fewer numbers of cases.

understand the harmony Kant describes as *eo ipso* pleasant, such a reading undervalues the role of our active contribution in the experience, our taste in appreciating, a contribution also undervalued if understood only as our appreciating our own disinterestedness.

4.

This much might then be considered established: in the absence of any intervening sensible interest or "overdetermination" by a concept, all others, making use only of their necessary epistemic conditions and in the absence of any such hindering factors, might be able to exercise reflection and experience a similar pleasure in such a harmony. However, we have as yet no compelling reason for expecting that they do; certainly we have no reason for demanding it. Before we can get to that question, though, the waters are muddied a bit by this sentence: "Hence it must be the universal communicability of the mental state, in the given representation, which underlies the judgment of taste as its subjective condition, and the pleasure in the object must be its consequence" (217).

We come then to the second of the three points listed above. Kant now adds some detail to just what an "indeterminate" "judging of the object," preceding and serving as the "basis" of pleasure, amounts to. He also claims that our appreciation of this felt harmony is tied to, or only pleasant because of, our appreciation of "universal communicability." This indeterminate, meandering reflecting is not wholly indeterminate, nor covertly regulative in the standard subjectivist sense. It turns out that that pleasure which is "the very consciousness of a merely formal purposiveness in the play of the subject's cognitive powers" can occur because of some sort of realization about the communicability of such reflecting. And this is now confusing. Since it would appear that the "mental state" mentioned must be the pleasurable harmony of faculties, this claim looks like it might commit Kant to the "absurd"[28] view that it is a realization of the universal communicability of the pleasure we are experiencing that renders the experience itself pleasant—a circularity, let us say, of numbing grossness.

We should first note what Kant later makes clearer in this section: that he is not claiming that what happens in the aesthetic response is like what happens when we experience a mental state—i.e., realize it is communicable, that others have or might have it—and so, because of our "natural propensity to sociability" (218), experience pleasure. That would make our pleasure in the communicability of a pleasure or any mental state merely empirical, not something we have a right to "require." But he does not indicate that, as he under-

[28] Guyer, *Kant and the Claims of Taste*, 155.

stands it, this qualification in any way undermines what he has just said about pleasure being a "consequence" of our realization of the "universal communicability of the mental state." Moreover, such a stress on the issue of communicability in the experience of pleasure itself is not a *hapax legomenon*. Keeping in mind Kant's claims that pleasure somehow "attaches" to judging, that judging "the subjective purposiveness of the object . . . is identical with the feeling of pleasure," that "to find beauty . . . we need nothing but pure reflection" (229), that the "liking for the beautiful" "depends on reflection" and so on "some concept or other" (207), it is instructive that he writes such things as the following:

> But one must understand a *sensus communis* to mean the idea of a shared sense [*eines gemeinschaftlichen Sinnes*], that is, a power of judging, which in reflection, takes account a priori in our thoughts of the mode of representation of everyone else, as though to consider his own judgment in terms of human reason in general, and so to escape the illusion that arises from the ease of mistaking subjective and private conditions for objective ones, an illusion that would have a prejudicial influence on the judgment. (294)

This notion of a "taking account" of others in reflection (with its suggestion that *this* is how the reflection on which pleasure in the beautiful depends ascends to a kind of "indeterminate universal") is presented as an explanation of taste itself, and so again as, apparently, a component of the capacity to feel pleasure, to have the aesthetic response. Taste, in other words, is not the ability to *justify* aesthetic judgments, to understand why aesthetic apprehension might be demanded of others or be universally communicable. It, together with all that Kant now says is involved in it, is the condition for the capacity for aesthetic appreciation itself.[29] This is stressed again at the end of section 40 when Kant defines taste as "the ability to judge a priori *the communicability of the feelings* that (without mediation of a concept) are connected with a given representation" (296).

Kant is not then arguing that we feel pleasure in the communicability of pleasure. When he said that "pleasure in the object" must be the "consequence" of some realization of the "universal communicability of the mental state in the given representation," he clearly could not have meant that "the mental state" referred to *is* an *immediately* experienced pleasure. Some realization that the harmony or free play of faculties, that *that* mental state, is not a wholly contingent occurrence, of significance only privately, is the

[29] See his earlier, again quite similar, definition of taste: "Das Vermögen zu wählen, was dem Sinn von jedermann gefällt. Facultas diiudicandi per sensum communem. Das Vermögen, sinnlich und allgemeingültig zu wählen, ist Geschmack" (R 1872, 1776–78).

"subjective condition" for the occurrence of a distinct pleasure involved in appreciation or taste.[30]

All this also means that the whole notion of the "judgment of the object" "preceding" the pleasure must be understood carefully. It would make as little sense to say that the aesthetic pleasure is pleasure in the communicability of pleasure, as it would to say that the pleasure that makes possible a judgment of taste itself depends on or follows from a judgment of taste. Here Kant's claim that a pleasure in an object occasioning a harmonious free play of faculties "depends" on, or is "attached to" some reflective appreciation of the significance of that occasion cannot be taken to imply any temporal precedence. The claim is only that such a distinct type of pleasure would not occur unless subjects possessed the mental faculties required for it, unless they could be assumed to pursue certain ends, and unless they realized the significance of this state in such a pursuit. For all the complications of his position, everything basically then rests on two claims. The argument is that (1) aesthetic delight must be understood as a distinct, pleasurable sense of the suitability of the natural world to our unique capacity as norm-instituting and norm-following beings. And (2) it is in this sense of the aesthetic dimension that we are entitled to require of others such an appreciation. In some sense, we could not properly go on as such beings without the development of such an appreciative capacity.

The whole situation is similar to Kant's account in moral philosophy of "incentives" and moral feeling. The feeling of respect seems to be produced as a result of subjecting oneself to the moral law, but also seems to function originally as "an incentive to make this law itself a maxim."[31] Properly said, though, "respect for the law is not the incentive to morality; it is morality itself, regarded subjectively as an incentive."[32] Likewise here, the feeling of pleasure is not some independent "ground" of a judgment of taste; it is a component of the judgment of taste "regarded subjectively."[33]

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[30] In a way, this had all been said earlier, "negatively," in the first five sections of the *Critique*, where Kant had insisted that the uniqueness of aesthetic pleasure consisted in its being "without interest." The key to that otherwise baffling notion would be that my "contemplative delight" in the beautiful object is already not a delight strictly relative to me, or one that occurs because of my psychological propensities alone. Thus it could not motivate an action in my particular interest. One collects objects because they happen to please one, or even because their beauty pleases one, and—Kant is trying everywhere to stress—that sort of pleasure should not be confused with what he sometimes calls the "purity" of aesthetic pleasure, its being "without an index," as Kulenkampff puts it (*Kants Logik*, 66–68).

[31] *Kritik der praktischen Vernunft*, Ak, 5: 76.

[32] Ibid.

[33] Cf. *KU*, 301, and the formulation of this point by Guyer in "Nature, Art and Autonomy: A Copernican Revolution in Kant's Aesthetics," in *Theorie der Subjektivität*, ed. K. Cramer *et al.* (Frankfurt: Suhrkamp, 1987), 339.

In sum, Kant is not claiming that an occasioned harmony simply causes a distinct pleasure, or that it is through an occurrent pleasure that we are conscious of such a harmony. A reflective judgment, indeterminate, without a fixed concept, brings to light the universal or shareable import of such a felt harmony and therewith a delight. This judgment involves, in the experience of such a delight, an estimation or appreciation of nature's purposiveness which invokes (again reflectively and subjectively) a norm (which still must be proved to be) binding on everyone. If this is evaluated rightly as beautiful, all ought to find it beautiful. The weight of the claim for the subjective universal validity of such judgments now can be seen to fall on how reflective judgment may be said to determine or ascertain this norm or this universal or shareable import.

5.

Addressing the question of Kant's argument for the putative indispensability of such a sense of things would require a comprehensive treatment of the Deduction as a whole and especially of the many complexities of the *desideratum* itself: a proof for the "subjective universal validity" of judgments of taste. The difficult relation between harmony, pleasure, reflective activity, and universal communicability is hard enough to make out. The criterion Kant is using in such a proof is even more complicated. The language of validity, as noted, suggests some norm binding on all, but that norm is not based on a claim about the necessary features of any possible object of experience, or on the empirically demonstrable features of any given object. Moreover, if the direction suggested above is correct, we ought not to interpret this *desideratum* as a mere rational expectation that others will or can feel something. As we have seen, their taking delight in the beautiful must be "preceded" by a reflective appreciation of the natural purposiveness evinced in the experience of harmony, an appreciation that itself should be understood as a kind of *sensus communis*. All of this already introduces a number of debatable claims. But with respect to the validity question, it pushes the question not towards questions of common faculties, the expectation of subjective responses and so forth, but towards a more strictly normative issue, as in: I am justified in demanding that you have and that you cultivate taste. Validity here does not mean what I know will happen to you or what I know you could experience, but what I am warranted in expecting of your estimations or evaluations of nature, since, as we have seen, those estimations (understood reflectively and indeterminately) are a central component of the aesthetic response itself.

One simple way of framing the problem would be to ask what Kant thinks would be deficient, would be missing, inappropriate, objectionable, etc., were

members of my community not to have, or not to have much cultivated, taste. If, as argued, a reflective activity is central to the possibility of an aesthetic response, and if this to some degree shifts the deduction question to the basis for our normative claim that we may justifiably expect this activity and orientation, what would be amiss—and in what sense would it be amiss—if there were no taste?[34]

It is not possible to pursue that reformulation here. But it does return us to some of the larger issues in the link between reflective judgment and aesthetic appreciation. As is clear from Kant's first discussion of the pleasure relevant to aesthetic judgments (where he had linked pleasure with the attainment of an aim, *Absicht*) to his final discussion of teleology (where the necessity for teleological explanation is linked to the unique needs, deficiencies, and aims of human reason), he is circling around a large issue first broached in section 6 of the published Introduction. There he remarked that "we *need* something that in our judging of nature makes us pay attention to this purposiveness of nature for our understanding" (187; my emphasis). In aesthetic judgments we require this "attentiveness" (or as he had also frequently put it, this "attunement") from others, and in teleological judgments we are, in effect, claiming that the general ends of the species (the satisfaction of reason) could not be achieved without reliance on teleological judgment (something that still sounds like "subjective universal validity"). Both such claims would force the issue back to the nature of these claims on others to fulfill our highest ends (a way of putting things that is only fully explicit in Kant's discussion of the "modality" of judgments of the sublime).[35]

The dimension at issue in this discussion, loosely organized under the notion of reflective judgment, would now involve the comprehensive issue of how such a self-determining subject can be said to achieve some sort of "orientation" in any investigation of nature or intentional activity. We know (at least since the Appendix to the first *Critique*'s Dialectic) that Kant believes we re-

[34] It is clear enough in sections 59 and 60 that Kant thinks that the answer to this question relies in some way on our moral orientation. Section 59 famously claims that the beautiful is "the symbol of the ethically good [*Sittlich-guten*]," and that it is "*only* in this reference (a relation which is natural to everyone and which anyone also requires of anyone else as a duty) does it please us, with a claim to another's agreement" (353; my emphasis). He goes so far in section 60 as to state flat out that taste is "at bottom a capacity for judging the sensible presentation of ethical ideas [*Versinnlichung sittlicher Ideen*]"; that the pleasure which we may expect others to have derives from this link, and that developing our moral ideas and moral feeling is the cultivation of aesthetic taste (356). Since Kant is quite clear otherwise that moral obligation is unconditional, his claim here to require such cultivation of others cannot be based on any condition for morality itself, and appears to reflect a different emphasis on the possibility of a moral vocation (*Bestimmmung*) in general. At any rate, such a "Schillerean" direction would have to be the topic of another paper.

[35] *KU*, Section 29, 265–66.

quire a "principle" of purposiveness in order that judgment may "orient itself" within "nature's immense diversity" (*in ihr orientieren zu können;* 34). Without such a principle or orientation, we would be lost. The understanding, he says, "could not find itself" in Nature.[36]

As is well known, in much of his discussion of such issues Kant relies on some version of his account of regulative ideals: as if we should project, subjectively, some anticipated order of nature, or harmony of virtue and happiness, in order to realize our moral destiny. But if that suggestion were a kind of model for the aesthetic domain, Kant should be arguing that we ought to require of each other that we attend to nature *as if* it were beautiful, on the assumption that such a demand is a condition for a sustainable moral life. But this is not how he argues; he avoids the suggestion that the beautiful is a norm either as a rule or as a regulative stipulation. As his indeterminate language everywhere indicates, it is a mere "sense," a shareable sense of things, a sense without which we would be "lost."[37]

We know, that is, that such an orientation is not the result of following a rule or a moral law or generalizing from experience (all of which would have to presuppose such an orientation or sense). The sometimes striking importance and priority ascribed to such a "pretheoretical orientation" is matched only by Kant's insistence that such an orientation is not simply "demanded" by reason or effected by nature or blindly produced by culture; it must be a *self*-orientation, we must achieve it and cultivate it, even while it is not a wholly autonomous or intellectual self-*legislation*.

As we have briefly seen, the complex interplay between spontaneity and passivity involved in such an always required "positioning" is played out in the third *Critique* in the analysis of the pleasure involved in aesthetic appreciation. In taking pleasure in the harmony occasioned by a natural object, we are somehow accomplishing this orientation, taking up the proper attitude to-

[36] ". . . ohne welche sich der Verstand in sie nicht finden könne" (ibid.).

[37] Since the reliance on some notion of shareability, a *sensus communis* in nondeterminative judgments, is also central to many figures in the hermeneutical tradition, Makkreel is undoubtedly right to stress the connection between Kant's general theory of reflective judgment and the hermeneutical problems of interpretation and meaning. Cf. *Imagination and Interpretation in Kant,* especially his criticisms of Gadamer's reading, 157–58, 168–70, and the discussion in Chapter 8 about "transcendental orientation." Those criticisms and that chapter introduce the crucial issue in understanding the relation between Kant's later work and the hermeneutical tradition, the issue that Makkreel calls the "evaluative" aspects of reflective judgment, which are especially relevant to the "aesthetic, religious and cultural" dimensions of human life (154). If we stress that the idea of a shareable meaning must be understood normatively, that a claim to getting something *right* must be involved, not an appeal to a co-experience, or empathetic shareability, then the problems of a genuinely "critical" hermeneutics (158) begin to be addressed and the links with Kant's problem emerge more clearly. For the implications of understanding this link this way, see also 166-71.

wards nature, as well as appreciating the indispensability of such an orientation. And this indispensability is what is appealed to in our claims that others must appreciate "where we are positioned" and so what we would have to be able to feel or sense if we are to be members of the human community of self-directing but finite agents. Appreciating beauty is not merely epistemically possible, nor simply morally required; it helps expose where, with what "orientation," all epistemic projects and moral agency must begin.

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